ELMON MUTIZIRA
(IN HIS CAPACITY AS THE EXECUTOR DATIVE
OF LATE JOSPHAT MUTIZIRA DR CY 224/24)
Versus
BEIJING BROADTEC INVESTMENTS (PVT) LTD
And
PROVINCIAL MINING DIRECTOR, MASHONALAND WEST PROVINCE
And
SECRETARY FOR MINES & MINING DEVELOPMENT
And
MINISTER OF MINES & MINING DEVELOPMENT

HIGH COURT OF ZIMBABWE
MUZOFA J
CHINHOYI, 3,4,&14 July 2025

Urgent chamber application

T. Masaka, for the applicant
S. Muzondiwa with T. C. Hungwe, for the 1st respondent
T. Chitekuteku, for the 2nd to 4th respondents

MUZOFA J: This is an urgent chamber application for an interim order to interdict the 1st respondent from conducting mining operations at Mukovo 12 Mine Registration number 4799 BM a mining location in Mashonaland West Province.

The applicant is the Executor Dative of the Estate Late Josphat Mutizira. The letters of administration were duly attached to confirm such appointment.

The 1st respondent is a company registered in terms of the law. It holds an EPO 1838 over a certain mining location in Mashonaland West Province. The 2nd to 4th respondents are cited in their official capacity as the administrators of the of the Mines and Minerals Act (Chapter 21:05) 'the Act'.

Brief Facts

According to the applicant, the deceased pegged and registered Mukovo 12 in February 2018. The certificate of registration is valid until 16 February 2026.

A dispute arose between the applicant and the 1st respondent over Mukovo 12. The 1st respondent invaded the mining location and was generally violent to the applicant's employees.

The dispute was registered with the 2nd respondent. On the 13th of June 2025, a determination was issued confirming the 1st respondent's rights over land under EPO 1838 in which Mukovo 12 is located. Incidental to the pronouncement the applicant's mining rights in Mukovo 12 were suspended and an intention to cancel the applicant's certificate of registration made.

Dissatisfied by the determination, the applicant noted an appeal against the 2nd respondent's decision to the 4th respondent.

After the issuance of the determination the applicant ceased all mining activities. Only security persons remained on site to safeguard the mining equipment and dumps.

On the 27th of June 2025, the 1st respondent through one Rickson Sibanda and others violently invaded the mining location and took possession.

The 1st respondent opposed the application and took two preliminary points, that the deponent to the founding affidavit has no mining rights as alleged and that applicant has dirty hands and should not be heard.

I directed parties to address the court on the preliminary points and on the merits for convenience. In the event that any one of the preliminary points disposes of the matter then the merits shall not be addressed.

No issues arise on urgency. It seems all parties took the matter as urgent.

Preliminary points

Whether the applicant can depose to the founding affidavit

It was submitted that the applicant is the executor dative in the Estate Late Josphat Mutizira. The applicant cannot therefore depose to an affidavit in the first person as if he owns the mining location yet it belongs to the Estate.

The point taken has no merit. *Mr Muzondiwa* relied on the Supreme Court case of (*1) Master of the High Court of Zimbabwe N.O. v Takaendesa and 5 Others (2) Mandima N.O. v Takaendesa and 5 Others, (3) House of Sari (Pvt) Ltd v Takaendesa and 5 Others SC101/22.)* for the proposition he made. Reliance on that case shows a failure to appreciate the factual conspectus in which the Supreme Court related to an executor's powers. In that case the executor sold properties in the absence of a valid consent from the beneficiaries. *A fortiori* that case deals with the conduct of the Master of the High Court in granting consent to dispose Estate properties. It is in that vein that at paragraph (32) of that judgment the Court noted,

' The executor's function is only to step into the shoes of the deceased and ensure that the beneficiaries receive their inheritance. It is noteworthy that in this instance the executor took it upon himself to act as big brother and decided that it was in the best interest of the

beneficiaries that the farms be sold as there was no activity on the farms. This was clearly not the mandate of the executor. His function was to ensure that the beneficiaries received their inheritance. What they thereafter did with it was not his concern'

In this case the applicant is indeed doing exactly as the law expects him to do, to protect the interest of the Estate for the beneficiaries. The acceptable principle in our jurisdiction is that an estate is not a legal persona. Its legal personality reposes in the duly appointed executor. Only the executor can sue or be sued in respect of estate matters. See *Vandira v Estate Late Enerst Noble & Ors HMA 10/23.*That the affidavit is in the first person is a red herring that does not bequeath the mining location to the applicant.

The point taken is dismissed.

Dirty Hands

1st respondent's point is that after the determination was issued, the applicant defied it and went back to the mining location and took some mine dumps. A report was made to the police. The applicant's efforts were unsuccessful since the police intercepted the loot.

The dirty hands principle is meant to preserve the court's integrity. Courts are courts of law. Only law-abiding citizens can approach the court for resolution of their disputes. The principle simply means a litigant must approach the court with clean hands. He or she can only be heard after purging his/her or its contempt.See *ANZ v Minister for Information & Publicity in the President's Office and Ors SC20/03, Deputy Sheriff, Harare v Mahleza & Anor 1997 (2) ZLR 425 (H*).

The dirty hands principle does not apply in this case. By its own submission the applicant attempted to sneak out some mining dumps (although disputed by the applicant) and its efforts were thwarted by the Police. The contemptuous conduct halted there and then there are no dirty hands to speak of. It is incomprehensible that 1st respondent insisted that the applicant must not be heard until it purged its contempt yet there was nothing to purge.

There is nothing in the way of the applicant to be heard the point taken is dismissed.

The merits

Applicant's case

The applicant avers that, the order issued by the 3rd respondent did not cancel its registration certificate over Mukovo 12 mine. It simply suspended mining activities. It therefore has an interest to protect. At the same time, the order did not grant mining rights to

the 1st respondent. The 1st respondent has mobilized resources to mine and has literally evicted the applicant.

Further it avers that its appeal to the 4th respondent enjoys great prospects of success, if the 1st respondent is not stopped in its tracks the applicant will suffer irreparable harm as minerals are finite resources. The 1st respondent has vandalized its equipment and if this continues the applicant is likely to suffer irreparable harm. The applicant simply intends to preserve the status *quo ante* pending determination of the appeal. There is no other remedy to fully protect its rights.

1st respondent's case

Mr. Muzondiwa submitted that the findings by the 3rd respondent are clear, Mukovo 12 mine is within EPO 1838 which belongs to the 1st respondent. The 1st respondent has simply mobilized security over Mukovo 12 to protect its interest. It cannot be interdicted for doing that which is lawful, lawful conduct cannot be interdicted. He relied on the authority of *Magaya v Gender Commission SC* 105/21 for the submission. The position of the law is correct only that the applicant has no lawful right to conduct mining activities which the applicant seeks to prohibit.

Further it was submitted that *prima facie*, the applicant's rights have been suspended. There is no legitimate right to protect. The application is a veiled attempt to stay the determination pending appeal.

2-4th respondents' submission

Although *Mr Chitekuteku* initially indicated that the 2nd to 4th respondents were not opposed to the application which means they will abide by the court's decision, he made valuable submissions to assist the court. He submitted that the two parties before the Court have different rights/titles. The applicant's Certificate of Registration gives the holder rights to conduct mining activities over an identified mining location. On the other hand, the 1st respondent's EPO gives the holder rights to explore for minerals. At this stage the holder of an EPO cannot conduct mining activities or even secure any location before certain administrative procedures have been conducted. He concluded his submissions with a rhetoric question, why the 1st respondent has security people at Mukovo 12.

The law

The applicant seeks an interim interdict. An interim interdict, which is also referred to as an interlocutory or a temporary interdict or an interdict *pendente lite* is one that is sought pending the outcome of proceedings between the parties, Cilliers *et al*, Herbstein & van Winsen *The Civil Practice of the High Courts of South Africa* 5 ed, Vol. 2, p. 1455. Its main purpose is to preserve or restore the *status quo* pending the final determination of the rights of the parties. Usually, it does not determine the parties' final rights. In *Winkelbauer & Winkelbauer* v *Minister of Economic Affairs* 1995 (2) SA 570 (T) at 574 BOTHA J said:

"The purpose of interim relief *pendent lite* is to obviate an injustice to a party who *prima facie* has been (or believes on reasonable grounds that he is about to be) wronged, but who needs time to obtain redress through the due process of law."

The requirements for an interim interdict are settled. An applicant for a temporary interdict will succeed if he or she establishes the following:

(a) That the right which forms the subject matter of the main action and that the applicant seeks to protect is clearly or *prima facie* established, even though open to some doubt;
(b) Where the right is only *prima facie* established, that there is a well-grounded apprehension of irreparable harm to the applicant if the interim relief is not granted and she or he ultimately succeeds in establishing the right. This requirement is not necessary where a clear right is established.
(c) The balance of convenience favours the granting of interim relief; and
(d)The applicant has no other satisfactory remedy.

The right

The certificate of registration that the applicant holds which is issued in terms of s45 of the Act bestows the applicant with mining rights. The applicant has been exercising these rights from 2018 until the 3rd respondent's order suspended such rights. To suspend is to temporarily put on hold, it is not cancellation, which the 3rd respondent intends to do in the future.

The applicant has been on the mining location for over 5 years and has obviously heavily invested in the mining entity. The averments that the 1st respondent has invaded the mining location and has vandalized equipment gives the applicant the right to protect its property. Even if there are no mining rights since they were suspended, in my view the applicant still has the residual rights to protect its interests in the property.

Mining rights have not been defined in the Act, the nearest I could find to understand what is mining is 'mining purposes' which is defined as,

'mining purposes" means the purpose of obtaining or extracting any mineral by any mode or method or any purpose directly or indirectly connected therewith or incidental thereto'

By inference what has been suspended is the applicant's presence for the purposes of obtaining or extracting minerals. Applicant was not barred from protecting its equipment particularly in light of the threat by the 1st respondent, infact applicant was not barred from the mining location. I must point that the applicant cannot seek to preserve the status quo ante. The status quo ante was when it could conduct mining activities which it cannot do by virtue of the 3rd respondent's order.

Since the certificate of registration is still extant the applicant now has limited rights and those rights he can well protect. I am satisfied that the applicant established an existing right. In any event the applicant has appealed the decision whose outcome maybe either way.

The harm

According to the applicant, the 1st respondent has mobilized equipment at the mining location, stolen mining dump, vandalized valuable mining equipment and has chased its employees. The apprehension is that the equipment maybe lost and if the 1st respondent commences mining activities the applicant would be irreparably prejudiced.

The 1st respondent does not deny that it has a presence on the ground. Its explanation is that the presence is for security purposes. It was necessitated by the applicant's attempt on 23 June 2025 to transport some mining dumps from Mukovo 12. Beyond that there is no evidence of mining activities.

It is disconcerting that the applicant blows hot and cold, in one breath it appears the intention is to freeze any mining activities by either party but in another there is an intention to co-exist and conduct mining activities. I am fortified in this conclusion by paragraph 22 of the applicant's founding affidavit that,

"The 1st respondent and I should maintain the status that has been prevailing for years and continue working at our respective locations. There is nothing that can stop the 1st respondent from working on the remained of the mining locations without interfering with Mukovo 12 mine"

If that paragraph is anything to go by it means the 1st respondent has some mining activities around Mukovo 12. With that in mind, the court must be clear the applicant cannot exercise its mining rights. The apprehension by the applicant in view of the 1st respondent's

presence cannot rule out the outlined harm on its equipment. In any event if the 1st respondent is a law-abiding citizen why would it resist such an order to prohibit activities at Mukovo 12. It has no mining rights to protect and according to *Mr Chitekuteku* it has no right to post security at Mukovo 12.

I am satisfied that the applicant has established that some harm to its equipment has either commenced or threatened. Surely the presence of people at Mukovo 12 in the absence of anyone from applicant leaves its property very vulnerable, anything is possible.

Balance of convenience

The balance of convenience is in favour of the applicant. In the event that the 1st respondent is not interdicted, the applicant stands to lose his equipment to vandalism. If the 1st respondent continues to conduct mining activities as alleged, and the appeal is successful the applicant stands to lose the value of minerals. It is in the interest of both parties that no activity takes place at Mukovi 12 until the appeal is heard. Technically the order protects both parties.

Alternative remedy

Absence of an alternative remedy must be understood from the remedy prayed for. For it to qualify as an alternative remedy, it must be adequate, having regard to the circumstances of the matter; be ordinary and reasonable; be a legal remedy and grant similar protection. See Herbstein & van Winsen *The Civil Practice of the High Courts of South Africa* 5 ed, pp 1467-1468.

I did not hear the 1st respondent claim that there is an alternative remedy that satisfies the said requirements.

Accordingly, the Provisional Order is granted in the following terms.

IN THE HIGH COURT OF ZIMBABWE CASE NO. /25
HELD AT CHINHOYI
In the matter between:-
ELMON MUTIZIRA APPLICANT
(In his capacity as the Executor Dative of E/L JOSPHAT MUTIZIRADRCY 224/24)

And

BEIJING BROADTEC INVESTMENTS (PRIVATE) LIMITED

1st RESPONDENT

PROVINCIAL MINING DIRECTOR, MASH WEST PROVINCE

2nd RESPONDENT

SECRETARY FOR MINES AND MINING DEVELOPMENT

3rd RESPONDENT

MINISTER OF MINES AND MINING DEVELOPMENT 4th RESPONDENT

PROVISIONAL ORDER

TO THE RESPONDENTS NAMED ABOVE:

TAKE NOTICE, that on the 11th day of JULY 2025 the Honourable Justice MUZOFA sitting at **CHINHOYI** issued a Provisional Order as shown overleaf.

The annexed Chamber Application, affidavit and documents are used in support of the Application for this Provisional Order.

If you intend to oppose the confirmation of this order, you will have to file a Notice of Opposition in form 24, together with one or more opposing affidavits, with the Registrar of the High Court at Chinhoyi within 10 days after the date on which the provisional order and annexure were served upon you. You will also have to serve a copy of the Notice of Opposition and affidavits on the Applicant at the address for service specified in the application.

If you do not file an opposing affidavit within the period specified above, this matter will be set down for hearing in the High Court at Chinhoyi without further notice to you and will be dealt with as an unopposed application for confirmation of the provisional order.

If you wish to have the provisional order changed or set aside sooner than the Rules of Court normally allow and can show good cause for this, you should approach the Applicant/Applicant's Legal Practitioners to agree, in consultation with the Registrar, on a suitable hearing date. If this cannot be agreed or there is great urgency, you make a chamber application, on notice to the Applicant, for directions from a judge as to when the matter can be argued.

TERMS OF THE FINAL ORDER SOUGHT

That you show cause to this Honourable Court why a final order should not be made in the following terms:-

1. Execution of the determination issued by the Second Respondent on the 13th June 202 be and is hereby suspended pending the determination of an appeal by the Applicant to the 4th Respondent.

2. The First Respondent shall pay costs of this application on an attorney and client scale.

INTERIM RELIEF GRANTED

Pending determination of this matter and on the return day the Applicant be and is hereby granted the following relief:

1. The First Respondent together with its employees and/or agents and/or assignees be and are hereby interdicted from carrying out mining operations and interfering with the Applicant's rights in **MUKOVO 12** mine, Registration Number 4799 BM.

SERVICE OF PROVISIONAL ORDER

The Provisional Order together with all supporting documents shall be served on the Respondents or their legal practitioners by the Sheriff or Applicant's legal practitioner.

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BY THE JUDGE

Farai & Associates, the applicant's legal practitioners.

Samukange Hungwe Attorneys, the 1st respondent's legal practitioners

Civil Division of the Attorney General's Office, the 2nd to 4th respondents' legal practitioners